

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.4999 of 2013

Mst. Asiya Ashraf Chaudhary V/S Government of the Punjab etc.

J U D G M E N T

Date of hearing	19.11.2019
Petitioner(s) by	M/S Feisal Hussain Naqvi, ASC and Ameer Hamza Dogar, Advocates.
Respondent(s) by	Mr. Amir Saeed Rawn, Advocate/Legal Advisor LDA.
	Barrister Umair Niazi, Addl. Advocate General.
	M/S Hamid ul Rahman Nasir and Muhammad Kashif Pasha, Civil Judges/Research Officers, Lahore High Court, Research Centre.
	Ms. Saadia Malik, Assistant Attorney General assisted by Barrister Minahal Tariq.

JAWAD HASSAN,J. Before dilating upon the merits of this writ petition, it is important to emphasize that this constitutional petition filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”) was filed back in year 2013. Unfortunately, there has been an inordinate amount of delay in the resolution of this matter. The Petitioner has sought compensation of her plot in the form of a developed plot as per the Compensation Policy of the Lahore Development Authority

(the “**LDA**”), and compensation for the delay, she has suffered in receiving this compensation.

I. BRIEF FACTS

2. The Petitioner owned two Kanals land as detailed in Mutation No.4797 dated 30.08.1979 situated in the village Niaz Beg (the “**Property**”). This land was acquired by the Government of the Punjab for the benefit of the LDA in 1981. This piece of land was specifically acquired for the establishment and development of the Maulana Muhammad Ali Johar Town, Lahore (commonly known as “**Johar Town Scheme**”).

3. Subsequently, the Deputy Commissioner, Lahore issued a Notification dated 05.01.1981 under Section 13 of the Punjab Acquisition of Land (Housing) Act 1973 bearing No.L.C/C-269-A. This notification authorized the Land Acquisition Collector, LDA (Urban Development Wing) to enter upon and take possession of the land including the Property of the Petitioner which was subsequently vested absolutely with the LDA.

4. The Petitioner sent a letter to LDA on 25.07.1985 stating that her above mentioned property had been acquired for the Johar Town Scheme and requested that a plot in lieu of acquired land be allotted to her. Moreover, she requested that a notice be issued to her for payment of development charges as per law. In response to her letter, the Respondent No.6 through a letter dated 25.05.1992 bearing No.JT-NB/II/2034 directed the Petitioner to provide documents to prove her ownership, which she provided.

5. Thereafter, the Director Land Development through a letter dated 12.11.1992, sought the recovery of development charges for the exemption of developed plots in Johar Town, Phase-II Scheme, Lahore. The Petitioner's Property was acquired by LDA for the development of this scheme, and thus she was entitled to receive compensation in the form of a developed plot equal in size to 30% of the acquired land. In the Petitioner's case, the proportion of land equal to 30% of area acquired by the LDA amounted to 12 Marlas. However, the Petitioner was also entitled to due cash compensation for the remaining 1 Kanal and 8 Marlas of her acquired land.

6. After adjustment of this compensation, the Petitioner was directed to deposit 54,216/- as development charges for the land area measuring 12 Marlas. She deposited this amount vide challan form bearing voucher No.2878 dated 22.12.1992. The Petitioner did not contact LDA after this as she assumed that given, she had made the relevant payments, provided all relevant documents and the LDA had accepted her claim for compensation and there was no further need to follow up the matter and that a plot had indeed been allocated to her.

7. After an long delay of nearly 20 years, the Petitioner received a letter bearing No.NB-II/1223/2120 dated 06.05.2010 from the Assistant Director (Exemption) wherein she was informed that she was no longer an "awardee" because her plot had been declared null and void by the Collector vide 09.04.1990.

Thereafter, the Petitioner once again preferred an appeal to the Respondents by providing the relevant revenue records through a letter dated 26.06.2010, in an attempt to prove her ownership of the Property and requested the concerned authorities to hand over possession of the Property to her as the same was already awarded in her favour, but all her attempts proved futile exercise.

8. The Petitioner then approached the Chief Secretary, Government of the Punjab, through a letter dated 27.07.2010 and requested that possession of her Property be restored to her. Respondent No.3 replied through a letter dated 20.08.2010 and stated that possession of the Property could not be handed over because a house had already been constructed over the Petitioner's original Property as the Property had been sold onwards by the LDA.

9. Ultimately it was revealed that the LDA had refused compensation to the Petitioner because of some confusion regarding the ownership of the Property as the sale deed in the name of the Petitioner contained only one Khasra No.13331 instead of three Khasra numbers i.e. Khasra No.13331, 13332, 13333. However, the Petitioner was succeeded to get a copy of amended record of rights which indicated all three Khasra numbers in the mutation showing the Petitioner as owner of same. This amended record of rights was provided to Respondent No.3 through a letter dated 30.07.2011.

10. The Petitioner made countless attempts to be rightfully compensated for her Property, acquired by the government, with all the relevant authorities but remained unsuccessful in the redressal of her grievance. Therefore, the Petitioner has filed this constitutional petition so that she may be provided adequate compensation.

II. PROCEDURAL HISTORY OF THIS WRIT PETITION:

11. The Petitioner filed her constitutional petition on 01.03.2013 but was met with an unjustifiable amount of delay in the hearing of her case. As a result of this delay, it has taken more than six years for the resolution of the Petitioner's grievance.

III. PETITIONER'S SUBMISSION

12. Mr Feisal Hussain Naqvi, ASC, counsel for the Petitioner has argued that while the State is empowered to acquire Property for the public purposes/welfare, it is also settled law that such acquisition should be equated by adequate compensation. He refers to Article 24 of the Constitution and submits that no person shall compulsorily be deprived of his/her Property except in due course.

13. That, Petitioner has encountered numerous hurdles because of various issues posed by LDA including their contention that possession of the Petitioner's property had never been taken by the LDA as a house was already constructed thereon. However, this issue was finally resolved after physical survey of said property by

concluding that possession of said property had already taken place and the LDA had allotted the said property to other persons.

14. He has further added that the LDA has already admitted that the award in favour of the Petitioner has only been withheld due to confusion regarding the Khasra numbers of property of the Petitioner. He argued that this issue has been clarified by the Petitioner as she has submitted the amended copy of the record of rights which indicate all three Khasra numbers. Therefore, the LDA has seriously prejudiced the rights of the Petitioner by withholding the Petitioner's award and compensation.

15. That, the LDA has denied the Petitioner of her fundamental right to Property by denying compensation in lieu of acquired property for about 37 years. That, the Petitioner has endeavoured to resolve this issue through innumerable means, but of no avail. Therefore, the Petitioner left with no other remedy except to invoke the extraordinary Constitutional jurisdiction of this Court.

IV. RESPONDENTS' SUBMISSION

16. The counsel for Respondents principal submission is that the owners have already been granted excess exemption against the land falling under Khasra No. 13331 to the extent of 1 Kanal and 11 Marlas, and under Khasra No. 13332 to the extent of 3 Kanal and 10 Marlas.

17. The Respondent's counsel further stated that first the Petitioner may get her award amended from the competent forum and thereafter, the office will be in a position to examine her

request to grant an exemption by cancelling the exemption of other owners.

18. He further added that Respondents do accept that an award was announced in favour of the Petitioner to the extent of land measuring 2 Kanals under Khasra No. 13331. That, they have refused request of Petitioner on the basis of technicalities as elaborated in their para wise comments.

V. RELEVANT LAW

19. Before going further into the merits of this writ petition, it will be of great help to have a glimpse of relevant laws.

(i). The Constitution of the Islamic Republic of Pakistan 1983

(a) Article 23 of the Constitution provides that “-
Every citizen shall have the right to acquire, hold and dispose of Property in any part of Pakistan, subject to the Constitution and any reasonable restrictions imposed by law in the public interest.”

(b) Article 24(1) of the Constitution provides that “No person shall be compulsorily deprived of his Property save in accordance with law.” and Article 24(2) states that “No Property shall be compulsorily acquired or taken possession of save for a public purpose, and save by the authority of law which provides for compensation therefore and either fixes the amount of compensation or specifies the principles on and the manner in which compensation is to be determined and given.”

(ii). The Punjab Acquisition of Land (Housing) Act, 1973

(a) Section 3 states that, *“Notwithstanding anything to the contrary contained in the Land Acquisition Act, 1894 or any other law for time being in force, and all land within the Province shall be liable to acquisition at any time under this Act for a housing scheme approved and notified by Government or Official Development Agency.”*

(b) Section 9 states that *“Where any land is acquired under this Act there shall be paid compensation, the amount of which shall be determined by the Collector who shall be guided by the provisions of sections 9 and 10”*

(c) Section 13 provides that *“In case of urgency, the Deputy Commissioner may, immediately after the publication of notice published under Section 6, (1), authorize the Collector through a notification published in official Gazette to enter upon and take possession of land which shall thereupon vest absolutely in Government or the Official Development Agency, as the case may be, free from all encumbrances: Provided that the Collector shall not take possession under this section without giving to the occupier thereof at least 24 hours’ notice of this intention to do so or such longer notice as may be reasonably sufficient to enable such occupier to remove his movable Property from such building or land without unnecessary inconvenience.”*

(iii). The Universal Declaration of Human Rights 1948

Article 17 of the Universal Declaration of Human Rights, to which Pakistan is a signatory, states that

“Everyone has the right to own Property alone as well as in association with others” and “No one shall be arbitrarily deprived of his Property”

VI. MOOT POINTS

20. This particular case raises three important issues to be decided by this Court:

- (i) *Whether the Petitioner owned a chunk of land acquired by the LDA for the Johar Town Scheme?*
- (ii) *Whether the Petitioner has a fundamental right to Property under Article 23 & 24 of the Constitution of the Islamic Republic of Pakistan and she cannot be deprived of the same without due process?*
- (iii) *Whether compensation in lieu of acquired Property is also a fundamental right protected under Article 24 of the Constitution and it remained in life until discharged/paid?*

VII. ANALYSIS OF MOOT POINTS

- (i) ***Whether the Petitioner owned a chunk of land acquired by the LDA for the Johar Town Scheme?***

21. Perusal of documents produced by the Petitioner transpires that the Petitioner has proved that she is the absolute owner of the land measuring 2 Kanals, including Khasra No. 13331, situated in Mouza Niaz Baig, Lahore and this land was undeniably acquired by the LDA for the establishment of the Johar Town Scheme

22. The Petitioner's file was referred to the Land Acquisition Collector, LDA to prepare a report on the matter of ownership. The Collector vide paragraph 105-N & 131-N reported that as per Award Part-B, Sr. No. 21, Mst Asiya Ashraf (Petitioner) had been awarded

ownership of land measuring 2 Kanals and including Khasra No. 13331, Mouza Niaz Baig, Lahore. The total area of Khasra No. 13331 is 10 Kanals and 15 Marlas, out of which LDA took possession of 6 Kanals and 18 Marlas of the total Khasra No. 13331 on 22.10.1991.

23. The Petitioner made repetitive attempts to resolve this issue, but her all requests were repeatedly turned down by concerned authorities. The Petitioner has provided the Respondents all ownership documents and has gone as far as providing the amended copy of the record of rights which include all three Khasra numbers in the mutation showing ownership of the Petitioner. Therefore, it can safely be concluded that the Petitioner undeniably owned a chunk of land, detailed above land and this particular land was acquired by the LDA for the benefit of the Johar Town Scheme in Lahore.

(ii) Whether the Petitioner has a fundamental right to Property under Article 23 & 24 of the Constitution of the Islamic Republic of Pakistan and she cannot be deprived of the same without due process?

24. It is in any event well established that fundamental rights are those rights which are recognized by the Constitution, the supreme law of the country, and jealously guarded and protected by the august Supreme Court and High Courts under Article 184(3) and Article 199(1)(c) of the Constitution of Pakistan, respectively.

25. Regarding right of a person to hold property being a fundamental right, it was held by this court in Ch. MUHAMMAD ISHAQUE, ADVOCATE Vs. CANTONMENT EXECUTIVE OFFICER, CHUNIAN, DISTRICT KASUR and another (PLD 2009 Lahore 240 (DB)):

“8. Examining the impugned action of the

respondents on the touchstone of Article 23 of the Constitution of Islamic Republic of Pakistan, 1973, it may be held that the fundamental rights enshrined by the Constitution are the most sacred rights, which are far above the ordinary rights conferred under the law and thus have special significance and sanctity attached thereto; the importance of these rights can be gauged and spelt out from the provisions of Article 8 of the Constitution, which declares that any prevalent law inconsistent with the fundamental rights shall be void and that the State shall not make any law which takes away or abridge these rights; furthermore, for the enforcement of the rights, extraordinary jurisdiction has been conferred upon the High Courts in terms of Article 199(1)(c), to make orders and giving such direction to any person or authority including any government exercising any power or performing any function in relation to the State, which are appropriate. Article 184(3) is also in the same direction. While construing and enforcing such rights, generous and purposive interpretation should be made and fullest possible meaning and amplitude must be given conforming to the real spirit of these rights, thus keeping the above principles in view, the expression/word "HOLD" appearing in Article 23 does not simply mean to "keep", "retain" or "occupy" the Property rather in its true sense,' it entails its use by an owner in the manner, he chooses to, with all the rights to enjoy the benefits of the Property which necessarily flows and are pertinent and appurtenant to his ownership. Thus,

when a restriction, which is not otherwise imposed by the law, is thrust upon the owner qua the free user of his Property, it is a clear case of the breach of his fundamental rights.”

26. Above discussion has already established that the Petitioner is the owner of the Property, thus she has a fundamental right towards her Property, which is provided and guaranteed under the constitution as an inalienable right. This principle was reiterated in the case of Malik Bashir Ahmad and 4 others Vs. Federal Government Of Pakistan through Secretary Cabinet Division and 6 others (PLD 2018 Islamabad 68), where the **Hon’ble Islamabad High Court** held that:

“The fundamental rights guaranteed under Articles 23 and 24 of the Constitution are inalienable rights of every citizen. These constitutional guarantees are subject to the legitimate exercise of the power of the eminent domain of the State. The public functionaries are under an obligation to ensure that their actions are based on just decisions, since improper exercise of power of forcibly taking a citizen's Property is an infringement of his or her constitutional right to own, possess and enjoy his or her Property. Any unlawful deprivation of Property also entails a violation of the right of liberty.”

27. In view of the above long-established principles, it is concluded that the Petitioner has a fundamental right to her Property. This right is guaranteed by the Constitution and cannot be taken away or denied by

any authority in an arbitrary manner, save as provided under Article 24 of the Constitution and the other relevant laws.

(iii) Whether compensation in lieu of acquired Property is also a fundamental right protected under Article 24 of the Constitution and it remained in life until discharged/paid?

28. Although it is settled law that State has the right to acquire Property for public welfare purposes but at the same time it is also established principle that such acquisition should be followed by prompt and adequate compensation for the affected owners/parties and article 24 of the Constitution of the Islamic Republic of Pakistan, 1973 encapsulates this principle.

29. To decide the controversy in hand, it would be advantageous to consider a number of important decisions of superior courts highlighting the importance of compensation in land acquisition cases. Recently, the **august Supreme Court of Pakistan** in *Mst. Bibi Shah Ban (Deceased) through L.Rs. and others Vs. Land Acquisition Collector, A.C., Mardan and others (2019 S C M R 599)* has held that:

“Article 24 (1) of the Constitution of the Islamic Republic of Pakistan ("the Constitution") stipulates that, ‘No person shall be deprived of his Property save in accordance with law.’ And, Article 24(2) of the Constitution mandates the payment of compensation for land compulsorily acquired. Depriving a person of Property is an exception to the fundamental right to hold and enjoy Property. The owner must be promptly compensated for the compulsorily acquired Property.”

30. In *PROVINCE OF PUNJAB through Secretary Irrigation, Government of the Punjab, Lahore and 2 others vs ADUL REHMAN SHAUKAT (1999 SCMR 2610)*, it has been held by **august Supreme Court** that

“3. We do not find any substance in the argument inasmuch as it is admitted that the land of the respondent has been acquired and no compensation has been given to him in lieu of the said land. The aforesaid order of the High Court is just, fair and proper. We agree with the view taken by the High Court that the act of the Petitioners in acquiring the land of the respondent without giving him the compensation is in violation of Articles 23 and 24 of the Constitution of Islamic Republic of Pakistan, 1973. No question of law of public importance has been raised by the learned counsel for the Petitioners in these proceedings. This being so, there is no substance in this petition which is dismissed and leave to appeal is refused.”

31. A similar view was taken by the **Division Bench of Lahore High Court** in the case of *Secretary, Local Government Vs. Sikandar Hameed and 10 others (2018 MLD 205)* where it was held that:

“Under Article 23 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") every citizen has the right to acquire, hold and dispose of Property in any part of the Pakistan. No doubt, the State can acquire the land, as has been provided under Article 24 of the Constitution but the idea of taking forcible possession of the land and that too without making

any compensation is alien to the Land Acquisition Laws.”

32. In addition to this, another **Divisional Bench of Lahore High Court** further reiterated and stressed this principle in *Malik Muhammad Ijaz Vs. Pakistan through Secretary Defense Islamabad and others* (2018 CLC 1445) by holding that:

“13. Compensation is at the heart of compulsory acquisition for making up the loss to the owner of the land and market value of the acquired asset is the yardstick for calculation of such compensation. Since the acquisition takes place without the willing consent of the owner, its exercise has always generated controversy. This is so because loss of homes and land, community cohesion, livelihood patterns, means of livelihood are the most likely victims when people, individually and collectively, are displaced from their communities, economic, social and cultural settings. Financial compensation in relation to the loss of land only rarely compensates the affected parties as the money paid cannot fully replace what is lost.”

33. Furthermore, in *Sheikh Anwar Saeed Vs. L.D.A.* (2015 C L C 1723), **Lahore High Court** has aptly held that:

“15. At the cost of repetition, it is observed that nobody can be deprived of his Property except under the due process of law. If the government reserves its right to acquire any land for completion of public welfare project, at the same time the owners of properties cannot be dispossessed without awarding them due compensation.”

34. Similarly, in *Mst. Mukhtiar Fatima Vs. Deputy Commissioner, Multan and 2 others (1997 MLD 1792)* it was held by **Lahore High Court** that:

“4. In the instant case there is no dispute with regard to the acquisition of the land, its possession having been taken from the owners and utilization of the same for the purpose of construction of a spur bund on the River Chenab. The owners were deprived of possession of the land some 2-1/2 years back and the compensation has not so far been received from the relevant quarter, much less its payment to the land owners. This indeed is highly dismaying. It is the duty of the functionaries of the State to ensure that the rights of the citizens, particularly the fundamental rights guaranteed under the Constitution should not be trampled or denied.”

35. So, when it is established that property of the Petitioner has been acquired, in view of these judicial pronouncements, her right to compensation in lieu of her acquired property is her fundamental right and is protected at par with her right to Property under Article 24 of the Constitution. This right will remain alive in her favour until discharged/paid.

VIII. DETERMINATION

36. It is established that the right to one's own Property is a fundamental right of every citizen and he/she cannot be deprived from his/her Property by any authority in an arbitrary manner. This right is protected and safeguarded by the constitution. Article 24 of the

Constitution allows for Property to be acquired or taken possession of in select circumstances when it is required for the public purpose under the authority of the law. However, the constitution only allows for such acquisition after compensation is provided thereof. Therefore, compensation becomes an equal right and similar to the fundamental right of Property, provided for and protected by the Constitution.

37. The Property of the Petitioner was acquired nearly three decades earlier by the Government of Punjab. This Property has since been developed and been sold onwards by LDA, however, the Petitioner is yet to be compensated. Despite the claim of the Petitioner being admitted by LDA, it has been refused on the basis of mere technicalities. This act is in clear violation of Articles 23 & 24 of the Constitution of the Islamic Republic of Pakistan. The Respondents cannot deny the Petitioners claim on such technicalities. Compensation in lieu of acquired Property is an established principle of law both in statute and common law. The word "Compensation" is defined in "*Words and Phrases*" 'Permanent Edition' Volume 8 by Thompson, Page No.366 published in April, 2005 in the following words:-

"Compensation," within provision for paying just compensation for property taken, means recompense or equivalent to owner, and has no relation to advantage to take, while "just" means fair money equivalent".

38. This Court recognizes the extraordinary delay faced by the Petitioner in attempting to enforce her legal and constitutional rights. In view of the above, this petition is allowed, and the Petitioner is held

entitled to have the exempted plot along with the amount of compensation to the extent of the remaining acquired land as per her award.

39. However, as the land has been utilized and a structure has since been constructed on it, I am not inclined to pass such an order lest the public interest suffers. The best alternative course appears to be to direct the LDA to provide alternative land in that vicinity to the Petitioner as per her entitlement of exempted plot or to pay compensation against that in accordance with the law and rules within a specified time.

40. Before parting with the judgment, I want to appreciate the valuable assistance rendered by Hamid ul Rahman Nasir and Muhammad Kashif Pasha, Civil Judges/Research Officers of this Court.

(JAWAD HASSAN)
JUDGE

Approved for Reporting

JUDGE

*Usman**